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Aracely Flores v. City Of Los Angeles, et al.

DEMURRER TO COMPLAINT

MOVING PARTY: Defendant State of California

RESPONDING PARTY(S): Plaintiff Aracely Flores

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Aracely Flores (Plaintiff) alleges she stepped onto uneven pavement while stepping down from the sidewalk to the street causing her knee to bend backwards. Plaintiff alleges this incident broke bones in her leg. Plaintiff alleges defendants the City of Los Angeles, Los Angeles County, and the State of California are all liable for this uneven pavement. Plaintiff brings a single cause of action for negligence.

The State of California (the State) now demurs to the complaint on grounds that Plaintiff fails to allege specific facts showing a reasonable inference that the State owns, controls, or maintains the property where the dangerous condition allegedly existed. Plaintiff opposed.

TENTATIVE RULING:

The State's demurrer to the first cause of action (negligence) is OVERRULED.

The State is ordered to file an answer within 21 days of this ruling.

Plaintiff is ordered to give notice, unless waived.

DISCUSSION:

Demurrer to Complaint

I. Meet and Confer

The Declaration of attorney Haiyang Allen Li reflects that the meet and confer requirement was satisfied.

II. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Pro. § 430.30, subd. (a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Ibid.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, at p. 747.) "We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.App.3d 584, 591.) A "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law." (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

III. Analysis

The State demurs on grounds that Plaintiff fails to allege specific facts showing a reasonable inference that the State owns, controls, or maintains the property where the dangerous condition allegedly existed. (Not. of Mot.)

In the complaint, Plaintiff alleges that, "[u]pon information and belief, at all relevant times herein, the sidewalk and adjacent portion of the street was designed, constructed, built, approved, maintained, and controlled by defendant, CITY, COUNTY, and STATE." (Compl. ¶11.) "Plaintiff is informed and believes and thereon alleges that at all times herein mentioned, that for a sufficient and reasonable period of time on, and prior to the date of the INCIDENT, defendants and each of them, were at least in part, the owners, operators, builders, engineers, contractors, lessors, renters, occupiers, maintainers, managers, repairers, cleaners, custodians, and/or controllers of certain property namely the above referenced sidewalk (i.e. the PROPERTY). At the time of the INCIDENT, the PROPERTY was at least in part, rented, leased, owed, operated, entrusted, built, modified, managed, occupied, maintained, cleaned and/or controlled by defendants, and each of them." (Compl. ¶19.)

However, allegations made on information and belief are insufficient if asserted without alleging the information that led Plaintiff to believe the allegations are true. (Gomes v. Countrywide Home Loans, Inc. (2011) 192 Cal.App.4th 1149, 1158-1159 ["A "[p]laintiff may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true."]) Here, Plaintiff makes no allegation as to any specific grounds for the belief that the State "designed, constructed, built, approved, maintained, and controlled" the street where the incident occurred. Instead, Plaintiff alleges that the State is in some way connected to that street by alleging every possible conclusion that would give Plaintiff the grounds to retain the State in this action.

Nevertheless, ultimately, this is a demurrer on grounds of uncertainty as Plaintiff has pled the ultimate fact that the State is either "rented, leased, owed, operated, entrusted, built, modified, managed, occupied, maintained, cleaned and/or controlled" the street on which the incident took place. (Compl. ¶19.) The State's demurrer objects to the specificity of such allegations. The Court notes that demurrers for uncertainty are disfavored and should only be sustained where the complaint is so uncertain that the demurring defendant cannot reasonably respond thereto. (See, e.g., Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616) Here, Plaintiff's complaint is not so uncertain the State cannot reasonably respond. Moreover, even if the pleading is somewhat vague, "ambiguities can be clarified under modern discovery procedures." (Ibid.)

The State cites Knight v. City of Capitola (1992) 4 Cal.App.4th 918 and Carroll v. State of California (1990) 217 Cal.App.3d 134 in support of its position. However, both cases addressed attorney's fees motions brought after dispositive motions such as summary judgment under Code of Civil Procedure, section 1038. Code of Civil Procedure, section 1038, allows certain defendants, including public entities, to recover the costs of defending frivolous actions. If the court determines "that the proceeding was not brought in good faith and with reasonable cause, an additional issue shall be decided as to the defense costs reasonably and necessarily incurred by the party or parties opposing the proceeding, and the court shall render judgment in favor of that party in the amount of reasonable and necessary defense costs." (Code Civ. Pro. § 1038, subd. (a).)

Plaintiff correctly argues that the application of Section 1038 would be premature as here, the action has not been determined on "summary judgment, judgment under Section 631.8, directed verdict, or nonsuit." (Code Civ. Pro. §1038, subd. (d).) However, such conclusion does not leave the State without recourse should Plaintiff not have specific factual basis for maintaining this action against it. Indeed, if the State is correct in its assertion that Plaintiff does not have factual allegations sufficient to include the State in this lawsuit, Plaintiff would bear the costs of the State's defense.

Plaintiffs' counsel fails to recognize that the determination of whether a party should be named in the original filing of a lawsuit is not predicated upon the attorney's belief that his client's interests are protected by naming every conceivable defendant, but whether the plaintiff has initially, '... brought the proceeding with reasonable cause and in the good faith belief that there was a justiciable controversy under the facts and law which warranted the filing of the complaint, ...'

[...]

At the minimum, this term requires that the Plaintiffs' attorney have some articulable fact or facts to conclude that a particular person or entity should be initially included in the lawsuit as a party-defendant.

(Carroll v. State of California, supra, 217 Cal.App.3d at p. 141-142.)

The Court takes no position at this time on whether Plaintiff's attorney has articulable facts to include the State in this instant action. Instead, the Court will make such determination if/when such motion for attorney's fees is brought. Ultimately, Plaintiff has sufficiently pled the ultimate fact that the State controlled the street where the injury occurred.

Accordingly, the State's demurrer to the Complaint is OVERRULED.

IT IS SO ORDERED.

Dated: July 29, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.